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Athens, 01-08-2024
Ref. No. 2075

DECISION 21/2024
(Section)

The Hellenic Data Protection Authority convened at the invitation of its President, in a Section composition, via videoconference on Wednesday, May 29, 2024, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority Konstantinos Menoudakos, the alternate members of the Authority, Maria Psalla and Dimosthenis Bougioukas, replacing the regular members Grigoris Tsolias and Konstantinos Lamprinouidakis, who, although duly summoned, did not attend due to impediments, as well as the alternate member of the Authority, Nikolaos Faldamis, as rapporteur without voting rights. Present without voting rights were the auditor – lawyer Anastasia Tritaki, as assistant rapporteur, and the employee of the administrative affairs department Irini Papageorgopoulou, as secretary.

The Authority took into account the following:

With the complaint under ref. no. G/EIΣ/2265/27-03-2023, which was supplemented by the documents under ref. nos. G/EIΣ/4634/21-06-2023, G/EIΣ/4643/21-06-2023, the complainant A protested before the Authority against the Administration of Submarines of the General Staff of the Navy for violation of the right of access to personal data concerning him. Specifically, the complainant claimed that he is a retired officer and served in the Administration of Submarines from ... to On ..., he requested via email to the Ministry of National Defense access to his service file and specifically to the special evaluation reports, information which he claimed is maintained by the Administration of Submarines. On ..., the complainant received a response under ref. no. ... (ref. no. G/EIΣ/4634/21-06-2023) from the General Staff of the Navy, which informed him of the following: a) that the Personnel Directorate of the Administration of Submarines is responsible for the maintenance, safekeeping, and management of the personnel suitability forms (“Special Evaluation Reports”) for service on Submarines, and that these forms are kept in special files for all active military personnel specialized in Submarines, b) the Administration of Submarines, taking into account the directives regarding the records maintained by naval services, proceeds to the destruction of these forms after two years from the date of retirement of the personnel, c) given that the complainant has been retired since ..., the requested suitability forms have been destroyed.

In the context of examining the above complaint, with its letter under ref. no. G/EΞ/2525/10-10-2023, the Authority invited the Ministry of National Defense, the General Staff of National Defense, the General Staff of the Navy, and the Administration of Submarines (Salamis Naval Base) to express their views on this matter. Due to a lack of response to the aforementioned letter, the Authority sent the reminder letter under ref. no. G/EΞ/3095/04-12-2023 to the aforementioned bodies, reminding them of their obligation to cooperate with the Authority pursuant to Article 31 of the GDPR.

With the response under ref. no. ... (with ref. no. G/EIΣ/8718/07-12-2023), the General Staff of the Navy stated before the Authority that the contents of the response under ref. no. ... (ref. no. G/EIΣ/4634/21-06-2023) to the complainant are valid, who served in the Administration of Submarines until ... of ... and was retired on It emphasized that the Administration of Submarines destroys the “Special Evaluation Reports” after two years from the date of retirement of the personnel, while after the lapse of twenty years, no relevant destruction protocol was found.

Following the examination of the case file, the Authority sent the summons under ref. no. G/EΞ/869/13-03-2024 for a hearing to all of the

document numbered G/EX/868/13-03-2024 are summoned to appear, via teleconference, for a hearing before the Authority's Department on Wednesday, March 27, 2024, at 10:00, regarding the discussion of the aforementioned complaint. In view of the upcoming hearing, the complainant submitted to the Authority, in accordance with Article 9 paragraph 1 of the Authority's Regulation (Decision 9/2022, Government Gazette B'879), the documents numbered G/IN/2553/19-03-2024 and G/IN/2599/20-03-2024, in which he declared his presence, reiterating the views he had previously submitted to the Authority.

During the hearing on March 27, 2024, the following representatives appeared via teleconference on behalf of the respondent: Mr. B, Head of the Computerization Department of Career Data of Military Personnel of the General Staff of the Navy, and Mr. C, Director of Personnel of the Second Branch of the Submarine Operations Administration of the Salamina Naval Base, while Mr. D, Data Protection Officer of the Hellenic National Defense General Staff, was also present. The aforementioned representatives pointed out that the content of the permanent officer's personal file is regulated by Article 2 of Presidential Decree 99/2001 and reiterated the contents of the document numbered ... (with the number G/IN/8718/07-12-2023), namely that the special report requested by the complainant was destroyed two years after the date of his full retirement, which took place on ..., and due to the passage of twenty years, no relevant destruction protocol was found. The destruction procedures are regulated by a Standing Order of the Hellenic National Defense General Staff with a confidential character. They also added that the complainant received a copy of the entire content of his personal file upon retirement. When asked by the President, they stated that they would not submit a memorandum for further support of their claims and did not present any memorandum or other evidence before the Authority following the hearing.

The Authority, after examining the elements of the file and what emerged from the hearing before it, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1) Since the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679) (hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 subparagraph f of the GDPR and 13 paragraph 1 subparagraph z of Law 4624/2019, it follows that the Authority has the competence to address the complaint at hand, as it concerns access of the data subject to personal data, including those contained in a filing system as defined in Article 4 subparagraphs 1) and 6) of the GDPR. Therefore, this involves processing subject to the regulatory scope of Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019.

2) Regarding the determination of the data controller, it is noted that according to the provisions of Article 4 subparagraph 7 of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State." According to the EDPB Guidelines 07/2020 regarding the concepts of the controller and the processor, it is essential for determining the data controller that...

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Functional criterion. When it comes to evaluating the determination of objectives and means in order to assign the role of data controller, it is crucial to examine the extent of detail required to define the objectives and means in order to be considered responsible for processing. The data controller is generally designated by law to achieve this purpose, this public duty. In this case, the legislation indirectly identifies the data controller. More generally, legislation may also impose on public or private

entities the obligation to maintain or provide specific data. Such entities are typically regarded as data controllers concerning the processing deemed necessary for the fulfillment of the specific obligation. In public administration, hierarchy serves as a means of internal organization aimed at ensuring the uninterrupted continuity of its work and the coherence of the rules applied among the units and services subordinate to the higher authority of the entity. Therefore, the functional criterion is primarily linked to the powers conferred by law to a specific authority, service, or legal entity under public law.

3) Because under the GDPR, a new compliance model has been adopted, the central point of which is the principle of accountability, within which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions, while the data controller bears the further duty to demonstrate at any time its compliance with the provisions of the Regulation.

4) Because according to Article 15 paragraphs 1 and 3 of the GDPR: "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular, the recipients in third countries or international organizations, d) if possible, the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller the rectification or erasure of personal data or restriction of processing of personal data concerning the data subject or the right to object to such processing, f) the right to lodge a complaint with a supervisory authority, g) when the personal data are not collected from the data subject, any available information as to their source, h) the existence of automated decision-making, including profiling, as referred to in Article 22 paragraphs 1 and 4 and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject." and "3. The data controller shall provide a copy of the personal data undergoing processing. For any additional copies that may be requested by the data subject, the data controller may charge a reasonable fee for administrative costs. If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format."

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5) Because according to Article 12 paragraphs 3 and 4 of the GDPR: "3. The data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by a further two months if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of this extension within one month of receiving the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless the data subject requests otherwise. 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject without undue delay and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

6) Because Article 31 of the GDPR states that "The data controller and the processor, and where applicable, their representatives, cooperate, upon request, with the supervisory authority in the performance of its tasks."

7) Because according to Article 10 paragraph 5 of Law 4624/2019 (Government Gazette A' 137): "The Authority is not competent to supervise (...) as well as acts of processing classified personal data carried out for activities related to national security." However, the Authority, in Opinion 01/2020, ruled regarding the above provision that: "Due to the generality of the provision, according to which acts of processing classified personal data carried out for activities related to national security are exempt from the Authority's supervision, difficulties arise in characterizing these acts. In view of this, it is advisable to add the following provision to paragraph 5: 'Authorities processing classified personal

data in the context of national security activities shall inform and cooperate with the Authority to ensure compliance with data protection legislation and in particular the adoption and maintenance of necessary general security measures."

8) Because from the provisions of Law 2292/1995 (Government Gazette A' 35) and the entirety of the information presented to the Authority, taking into account what is stated in consideration 2, it appears that the Ministry of National Defense, through the General Staff of National Defense, is the data controller of the personnel files of the Navy.

9) Because from the entirety of the information presented to the Authority during the examination and hearing, it appears that the respondent did not provide any evidence before the Authority that would substantiate the destruction of the data requested by the complainant and consequently the inability to provide them to the complainant. Regarding the respondent's claims about the duration for which the disputed data is retained and the related destruction protocol, a temporal and logical inconsistency is noted, given that, since the complainant retired on ... and the data was destroyed, according to the respondent's claims, after two years, while the destruction protocol is retained for a period of twenty years, the inability to present the relevant destruction protocol was not explained before the Authority.

10) Because regarding the respondent's claim that the complainant requested and received a copy of the disputed data at the time of his retirement, the Authority finds that this claim was raised belatedly and only during the hearing, without having been opposed to the complainant and without having been raised at an earlier stage during the submission of written statements prior to the hearing, nor was it substantiated thereafter with the presentation of relevant evidence; consequently, it is ineffectively raised and cannot be accepted.

11) Because furthermore, the complainant did not receive a relevant response to the request dated ...

5 For the secure destruction of personal data after the period required for the purpose of processing has been fulfilled, the Authority has issued Directive No. 1/2005 (available on its website).

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his access within the deadlines set by Article 12 paragraphs 3, 4 of the GDPR, as he received a response on ..., therefore exceeding the time limits established by the aforementioned provisions,

12) Finally, the claim of the respondent regarding the non-submission of the Standing Order under which the aforementioned data destruction process is regulated and conducted, due to its classified nature, is raised in vain, as the Authority has repeatedly pointed out that the processing of personal data occurring in the field of national defense does not fall outside the scope of the legislation for the protection of personal data. For the invocation of "national security" reasons, the data controller must interpret, define, and substantiate ad hoc that the processing is carried out for an activity concerning the national security of the country, unless the existence of this concept is evident. From the above, it follows that the respondent did not invoke actual facts, nor did he provide relevant evidence from which it can be established that the said data destruction process constitutes, according to Article 10 paragraph 5 of Law 4624/2019, an "activity concerning national security," and therefore the respondent was obliged to present this before the Authority in order for the Authority to be able to assess the compliance with the data destruction process concerning the relevant data,

13) Considering the factual circumstances of the case under examination, as outlined in the first part of this document, it is established that the respondent data controller did not respond to the Authority's document No. G/EX/2525/10-10-2023, only after the Authority's document No. G/EX/3095/04-12-2023, while, taking into account the considerations in the immediately preceding paragraphs, it is determined that the respondent data controller did not sufficiently substantiate before the Authority the inability to provide the requested data to the complainant; furthermore, he was obliged, based on the principle of accountability, to make available and inform the Authority of the relevant framework for the destruction procedures of the relevant data,

14) Following all of the above, it is determined that the respondent data controller violated the provisions of Article 15 paragraphs 1, 3 of the GDPR in conjunction with the provisions of Article 12 paragraphs 3, 4 of the GDPR, as well as the violation of Article 31 of the GDPR regarding cooperation

with the Authority. The Authority deems that in relation to the aforementioned violations, there is a case for exercising its corrective powers in accordance with Article 58 paragraph 2 of the GDPR, as well as Article 39 of Law 4624/2019, and the recitals 148 of the GDPR. In evaluating the data by the Authority, in order to select the appropriate and corrective measure, the following elements of the terms of Article 83 paragraph 2 of the GDPR, applied proportionally, are taken into account:

- as an aggravating factor, that the complainant held the status of being hierarchically subordinate to the respondent during his military career (Article 83 paragraph 2 point a) GDPR),
- as a mitigating factor, that the complainant did not invoke further material or moral damage related to the said violation (see also recital 75 GDPR) (Article 83 paragraph 2 point a) GDPR),
- as a mitigating factor, the fact that the respondent responded to the complainant before the Authority's intervention (Article 83 paragraph 2 point c) GDPR),

8 See also Decision 36/2021 of the Authority, available on its website.

9 The Guidelines 04/2022 for calculating administrative fines under the GDPR of the European Data Protection Board, European Data Protection Board, Guidelines 04/2022 for calculating administrative fines under the GDPR, Ed. 2.1, May 24, 2023, as well as the Guidelines for the implementation and determination of administrative fines for the purposes of Regulation 2016/679 of the Article 29 Working Party, October 3, 2017, are also taken into account, applied proportionally.

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- as an aggravating factor, that the Authority has previously established a violation by the data controller (Article 83(2)(e) GDPR).

Based on the above, the Authority unanimously decides that administrative sanctions, as specified in the operative part, must be imposed on the reported data controller, appropriate to the specific circumstances of the case.

FOR THESE REASONS

The Authority

A) finds that the Ministry of National Defense, as the data controller, has violated the provisions of Article 15(1), (3) GDPR in conjunction with the provisions of Article 12(3), (4) GDPR, and imposes an administrative monetary fine of two thousand (2,000) euros in accordance with Articles 58(2)(h) and 83(5)(b) GDPR, for the reasons extensively analyzed in the reasoning of this decision, and

B) finds that the Ministry of National Defense, as the data controller, has violated the provisions of Article 31 GDPR and imposes an administrative monetary fine of three thousand (3,000) euros in accordance with Articles 58(2)(h) and 83(4)(a) GDPR, for the reasons extensively analyzed in the reasoning of this decision.

The President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou

10 See, for example, Decisions 2/2022 and 3/2022 of the Authority, available on its website.